



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

APR 12 2001

DOT-E 12673

EXPIRATION DATE: July 31, 2001

1. GRANTEE: Coors Brewing Company
Golden, Colorado
2. PURPOSE AND LIMITATION
 - a. This emergency exemption authorizes the transportation in commerce of certain DOT specification 115A60W6 tank cars having welded tank repairs that are not as specified in the hazardous materials regulations (HMR). This exemption provides no relief from any HMR other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.203(a) in that marking the exemption number on the shipping papers is waived; § 172.302(c) in that marking the exemption number on the tank cars is waived; and § 180.513(a) in that the tank cars have welded tank repairs that are not as required.
5. BASIS: This emergency exemption is based on the application of Coors Brewing Company dated December 15, 2000, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss.

Continuation of DOT-E 12673

Page 2

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

APR 12 2001

Proper shipping name -- Hazardous materials description	Hazard Class/ Division	Identi- fication Number	Packing Group
Those materials authorized in DOT specification 115A60W6 tank cars by the HMR	Various	Various	Various

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are nine DOT specification 115A60W6 tank cars that have welded insert repairs to the outer tank using a single welded butt joint with backing strips that have not been radiographed. The tank car reporting marks and numbers are:

CORX 5064	CORX 5068	CORX 5158
CORX 5160	CORX 5162	CORX 5200
CORX 5219	CORX 5251	CORX 5255

b. TESTING - Each tank car operating under the terms of this exemption must be qualified in accordance with § 180.509 at the date of the next qualification.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING - The marking requirements of § 172.301(c) and the shipping paper notation requirements of § 172.203(a) are waived.

d. Each welded insert must have a single welded butt joint, using backing strips with a 1-inch minimum width and 1/8" minimum thickness. Each insert must have a 1-inch minimum corner radius. The insets must restore original contour.

APR 12 2001

e. Radiography is not required provided the welds are inspected by a certified welding inspector using liquid penetrant or equivalent method.

f. Welding must be performed by certified welders in accordance with one of the following Welding Procedure Specifications with a root pass no greater than 3/16 inch (1/8" + 1/16" tolerance):

- i. WPS FC-1-3 (RSP-043) detail 5;
- ii. WPS FC-1-7 (RSP-055) detail 5; or
- III. WPS SM-1-5 (RSP-044) detail 5.

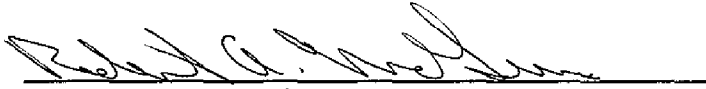
9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.
10. MODAL REQUIREMENTS: None as a requirement of this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. § 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

APR 12 2001

(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
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PO: WS/AM